

25TRCV03229 25TRCV03229

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Case Number: 25TRCV03229 Hearing Date: July 28, 2026 Dept: B

Moving

Parties: Plaintiff Kinecta Federal Credit Union

Responding

Party: None

Motion for Summary

Judgment or, in the alternative, Summary Adjudication

The court considered the moving papers. No opposition was filed.

RULING

The motion for summary judgment is GRANTED. The motion for summary adjudication is moot in light of the ruling on the motion for summary judgment.

BACKGROUND

On September 19, 2025, plaintiff Kinecta Federal Credit Union filed a complaint against defendant Austin Joel Feist for (1) breach of contract (credit card agreement), (2) money lent, (3) account stated, (4) breach of contract (loan), (5) money lent, and (6) account stated.

LEGAL

AUTHORITY

The

purpose of a motion for summary judgment or summary adjudication “is to provide

courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." *Aguilar v. Atlantic Richfield Co.* (2001)

25 Cal. 4th 826, 843. "Code of Civil

Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." *Adler v. Manor Healthcare Corp.* (1992) 7 Cal. App. 4th 1110, 1119.

"On a

motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal. App. 4th 1510, 1519. "A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto."

"When

deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." *Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal. App. 4th 463, 467. "An issue of fact can only be created by a conflict in the evidence.

It is not created by speculation, conjecture, imagination or guesswork." *Lyons v. Security Pacific National Bank* (1995) 40 Cal. App. 4th 1001, 1014 (citation omitted).

DISCUSSION

Plaintiff Kinecta Federal Credit Union requests summary

judgment as to each of the causes of action on the ground that there is no triable issue of fact and as a matter of law, it prevails. In the alternative, plaintiff requests summary adjudication as to each of its causes of action.

Credit card agreement

The first

cause of action for breach of contract, second cause of action for money lent, and third cause of action for account stated are as to the credit card agreement. The complaint alleges that defendant submitted an application for a credit card account with plaintiff on October 20, 2022. Defendant's application was approved and the parties entered into a written MyPerks Mastercard Credit Card Agreement and Disclosure. In accordance, therewith, defendant was sent, and did receive, a MyPerks Mastercard in accordance with the written credit card account agreement. Complaint, ¶6. A credit limit of \$17,400 was granted to defendant with an annual percentage rate of 18% for purchases, balance transfers, and cash advances. Id., ¶7. Pursuant to the terms of the credit card agreement, once defendant used the credit card account, defendant agreed to pay plaintiff for any transaction incurred by and posted to his credit card account via monthly payments, and defendant further agreed to otherwise comply with all the terms and conditions of the credit card agreement. Id., ¶8.

Defendant exercised his rights to use the credit card agreement and used it by making various purchases and transactions with his card. Id., ¶9.

Plaintiff has performed all the promises, conditions, and covenants it agreed to perform. Id., ¶10. Events of default have occurred as defendant failed to make payments when due.

Defendant last made a payment April 11, 2025 and has failed to make any subsequent payments. In accordance with the terms and conditions of the credit card agreement, plaintiff demanded the entire balance be paid. Defendant has failed and refused to pay the sums due.

Id., ¶11. There now remains due, owing and unpaid the sum of \$17,155.66, plus interest as applicable and allowed per law. Id., ¶12. Defendant agreed to pay reasonable attorney's fees and costs in collecting any amount due under said agreement. Id., ¶13.

See plaintiff's separate statement of undisputed material facts, nos. 1-6;

Matthew Marquez decl., Exh. 1, 2. The

Court notes that Marquez's declaration and the summary of account activity at

Exh. 2 state that the amount that remains due and owing and unpaid is \$17,925.452, which exceeds the amount stated in the complaint.

No
opposition was filed.

The
Court finds that plaintiff met its burden of showing that there is no defense as plaintiff has proved each element of the causes of action for breach of contract, money lent, and account stated.
Plaintiff is limited, however, to the amount alleged in the complaint.

Loan agreement

The fourth cause of action for breach of contract, fifth cause of action for money lent, and sixth cause of action for account stated are as to a loan. The complaint alleges that on October 20, 2022, defendant entered into a "Loan and Security Agreement and Disclosure Statement" with plaintiff, wherein defendant obtained a loan from plaintiff in the amount of \$42,000, with an annual percentage rate of 7.490%, which was to be repaid via monthly payments, commencing on January 10, 2023, in the amount of \$850.24 until paid in full. Complaint, ¶11. Plaintiff has performed all the promises, conditions and covenants it agreed to perform.
Id., ¶12. Events of default under the terms of the loan have occurred as defendant has failed to make the payments when due. Plaintiff demanded the entire balance of the loan to be paid.
Defendant has failed and refused to do so. Id., ¶14.
As of July 28, 2025, there was due, owing, and unpaid on the loan the sum of \$26,113.64. Interest accrues at the daily rate of \$5.24 until paid in full or judgment is entered. Id., ¶15.
Pursuant to the terms of the loan, defendant agreed to pay reasonable attorney's fees and costs incurred in collecting any amount due under the loan. Id., ¶16. See plaintiff's separate statement of undisputed material facts, nos. 7-12; Matthew Marquez decl., Exh. 3, 4. The Court notes that at Ex. 4 "transactions by loan number," the balance due as of April 11, 2025 was \$25,518.10, which is less than what was alleged.

No
opposition was filed.

The

Court finds that plaintiff met its burden of showing that there is no defense as plaintiff has proved each element of the causes of action for breach of contract, money lent, and account stated.

Plaintiff is limited, however, to the amount of damages proved via the submitted evidence.

ORDER

The

motion for summary judgment is GRANTED in the amount of \$42,673.76. The motion for summary adjudication is deemed MOOT in light of the ruling on the motion for summary judgment.

Plaintiff

shall file a proposed judgment.

Plaintiff is ordered to give notice of this ruling.